Achrei Mos 5784

Parshas אחרי מות: A fundamental קשיא is that in a number of places in ש"ס, we find מחלוקתים between a דעת יחיד and a רבים. Invariably (with major exceptions), we follow the רבים. That being the case, what's the purpose of bringing us the דעת יחיד and the מחלוקת at all? Just tell us what the דעת רבים is, and we'll know what the הלכה is!

This קשיא is addressed in משניות עדיות, where בית הלל and בית שמאי have a number of major מחלוקתים. The משנה points out that the greatness of בית הלל is shown in that even though they often opposed the שיטה of בית שמאי, they were willing to concede when בית שמאי convinced them. They were not עקשנים, they weren't stubborn, rather they were מודה and accepted the שיטה when they realized it was correct.

That's one fundamental lesson, a מוסר השכל, that we pick up from מחלוקתים in ש"ס: that even among great תלמידי חכמים, when one recognizes that the other side is correct, he must concede.

Another fascinating מוסר השכל that we can learn from our parsha is that חז"ל tell us in the Yerushalmi מסכת יומא on the pasuk אַחֲרֵי מוֹת שְׁנֵי בְּנֵי אַהֲרֹן. Although אהרן's sons were נפטר on ניסן א׳ - as we know, on יום השמיני, when the משכן was first consecrated - their deaths are nevertheless mentioned here, in אחרי מות, in connection with יום כיפור. The גמרא says we learn from here that just as יום כיפור is מכפר for our עבירות, so too, the מיתה of צדיקים provides כפרה for the entire דור.

R' Chaim Kanievsky זצ"ל (*Rav Chaim Kanievsky on Chumash*. Permission granted by ArtScroll / Mesorah Publications) shares a beautiful idea which he heard בשם R' Yitzchok Elchonon Spector of Kovno. The גמרא in כתובות relates that at the levaya of רבי יהודה הנשיא, a בת קול proclaimed that all who participated in his levaya were ראוי for חיי העולם הבא. The קשיא is: Why was such a בת קול made specifically at רבי יהודה הנשיא's funeral? What about the לוויות of many other equally great צדיקים and תנאים? Why no בת קול then?

R' Yitzchok Elchonon explained that there was a מחלוקת between רבי יהודה הנשיא and the חכמים. רבי יהודה held that יום כיפור alone is מכפר for עבירות, while the חכמים held that יום כיפור is only מכפר for someone who first does תשובה. Unquestionably, תשובה is a vital component of our עבודה, but the underlying question is: does יום כיפור provide כפרה only to those who do תשובה, or to everyone, even without תשובה? The הלכה, of course, follows the חכמים - that without תשובה, יום כיפור is not a blanket כפרה. Therefore, at the לוויות of most צדיקים, there is no general בת קול proclaiming עולם הבא for all those in attendance, because who knows if they had done תשובה or not? But at the levaya of רבי יהודה הנשיא, as a tremendous expression of הכרת הטוב and respect for his שיטה, Hashem arranged that everyone who was there - whether or not they had done תשובה - received כפרה. Therefore, the בת קול said that everyone present would merit a חלק in עולם הבא.

There's no question that we are obligated to do תשובה. But the power of a דעת יחיד was so great that it was able to be מזכה all those who were at the levaya of רבי יהודה הנשיא with חיי עולם הבא regardless of their תשובה status.

It is a tremendously important lesson that we must listen to all of the דעת יחיד opinions we see in the גמרא and משנה. We never know what kind of זכות we may receive by listening to and learning from each one of these great חכמים, teachers, and leaders, who have an influence on each and every one of us.

https://youtu.be/wQL1ivEbMAk